

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: APU	CCRB Case #: 201901243	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/27/2019 4:57 PM	Location of Incident: [REDACTED]	Precinct: 70	18 Mo. SOL 7/27/2020	EO SOL 3/13/2021	
Date/Time CV Reported Mon, 01/28/2019 5:54 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/11/2019 11:10 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Raymond Higgins	3230	[REDACTED]	070 DET

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Raymond Higgins	Abuse: Detective Raymond Higgins made a sexually suggestive remark to § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On January 28, 2019, Captain Noema Ioffe called IAB and filed the following complaint on behalf of § 87(2)(b). On February 11, 2019, IAB referred the complaint to the CCRB via Log # 19-4623.

On January 27, 2019, at approximately 4:57 p.m., Detective Raymond Higgins of the 70th Precinct Detective Squad engaged in a text message conversation with § 87(2)(b) a domestic violence victim, in regard to a case he was investigating. In the course of the text conversation, Det. Higgins made a sexually suggestive remark to § 87(2)(b) (**Allegation A-Abuse of Authority, § 87(2)(g)**).

Findings and Recommendations

Allegation A- Abuse of Authority: Detective Raymond Higgins made a sexually suggestive remark to § 87(2)(b)

It is undisputed that Det. Higgins was assigned to a domestic violence case involving § 87(2)(b) and her ex-boyfriend. After interviewing § 87(2)(b) in person, Det. Higgins engaged in a text message conversation with § 87(2)(b) to ask follow-up questions. It is undisputed that in the course of the conversation, Det. Higgins inquired about § 87(2)(b)'s career field. § 87(2)(b) informed Det. Higgins that she worked as a § 87(2)(b), to which Det. Higgins replied, "Oh wow hot § 87(2)(b) (smirking emoji)." It is undisputed that § 87(2)(b) notified the 70th Precinct Domestic Violence Officer about Det. Higgins' text, who in turn notified Captain Ioffe.

§ 87(2)(b) was uncooperative with the investigation and a sworn statement was not obtained.

The text messages between § 87(2)(b) and Det. Higgins were provided to the investigation by IAB (Board Review 1).

Det. Higgins testified (Board Review 2) that he sent the "oh wow hot § 87(2)(b)" text message to § 87(2)(b) because he wanted to compliment her since she had a long history of bad relationships with men. Other than complimenting her, there was no other reason Det. Higgins sent the "oh wow hot § 87(2)(b)" text message.

Patrol Guide Procedure 203-09 (Board Review 3) states that officers are to interact with members of the public in a professional manner.

Patrol Guide Procedure 203-10 (Board Review 4) states that the use of offensive language towards a person's gender is prohibited.

Patrol Guide Procedure 205-36 (Board Review 5) states that sexual harassment includes, but is not limited to, sexually suggestive remarks.

Patrol Guide Procedure 210-01 (Board Review 6) states that the NYPD has a zero-tolerance policy towards all forms of sexual harassment of prisoners by any person.

Although § 87(2)(b) was not a prisoner, Det. Higgins was interacting with her in a law enforcement capacity. § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 7).
- Det. Higgins has been a member of service for 12 years and has been a subject in seven CCRB complaints and 10 allegations, of which two were substantiated (Board Review 8):
 - 201016221 involved a substantiated allegation of physical force against Det. Higgins. The NYPD added the allegation and imposed instructions.
 - 201506328 involved a substantiated allegation of a frisk against Det. Higgins. The Board recommended formalized training and the NYPD imposed formalized training.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- According to the Office of Court Administration (OCA), § 87(2)(b) has no history of convictions in New York City (Board Review 9).
- On April 16, 2019, a request was sent to the Office of the New York City Comptroller in regard to any notice of claim filed by § 87(2)(b). The results will be added to the case file upon their receipt.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date